

26STCV04010 26STCV04010

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Case Number: 26STCV04010 Hearing Date: July 30, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

30, 2026 TRIAL DATE: N/A

CASE: Farzad Farahani, et al. v. Ohannes Mouchmouchian, et al.

CASE NO.: 26STCV04010

SPECIAL

MOTION TO STRIKE/ANTI-SLAPP

I. BACKGROUND

This

action concerns adjoining real property located at 5514 Keokuk Avenue, Woodland Hills, California 91367 (the "Plaintiffs' Property") and 5518 Keokuk Avenue, Woodland Hills, California 91367 (the "Defendant's Property"). Plaintiffs, Farzad Farahani and Shohreh Taheri, allege that, in 2017, Defendant, Ohannes Mouchmouchian, destroyed a fence separating the two properties then later falsely represented that he intended to build a concrete block wall along the property line. In 2022, Defendant constructed an alternative dwelling unit ("ADU") that encroaches on Plaintiffs' Property. Plaintiffs allege that they learned in 2025 that the concrete wall had been built on Plaintiffs' Property, as well as the ADU's encroachment, when they had a land survey conducted for the construction of a swimming pool.

On

February 6, 2026, Plaintiffs filed this action against Defendant for (1) intentional misrepresentation, (2) negligent misrepresentation, (3) negligence, (4) trespass to land, (5) private nuisance, (6) ejectment, (7) quiet title, and (8) declaratory relief. The court overruled the May 26, 2026, demurrer to the complaint. On May 28, 2026, Mouchmouchian filed a pleading entitled “answer and counterclaims,” which identified causes of action for Breach of Oral Contract, Negligent Misrepresentation, and Declaratory Relief in the caption, but the body of the pleading instead includes eight causes of action for Intentional Misrepresentation, Negligent Misrepresentation, Negligence (3rd and 4th causes of action), Private Nuisance, Ejectment, Quiet Title, and Declaratory Relief, along with 10 affirmative defenses. On the same date, Mouchmouchian also filed a separate series of “counterclaims” again with identified causes of action for Breach of Oral Contract, Negligent Misrepresentation, and Declaratory Relief in the caption, with the body of the pleading actually and exclusively alleging the three identified causes of action.

The

cross-complaint alleges Plaintiffs/Cross-Defendants disagreement with the placement of the wall after orally agreeing to construction constitutes a breach of contract; negligent misrepresentation due to dismissal of any need to hire a surveyor and determine the property based on a sidewalk marker; and, requires a finding of declaratory relief regarding the rights and duties of the parties.

II. LEGAL STANDARD

“A cause of action against a person arising from any act of that person in furtherance of the person’s right to free speech under the United States or California Constitution in connection with a public issue shall be subject to a special motion to strike unless the court determines that the Plaintiff has established that there is a probability that Plaintiff will prevail on the claim.” (Code Civ. Proc., § 425.16, subd. (b)(1).)

“A court’s consideration of an anti-SLAPP motion involves a two-step process. ‘First, the court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity. The moving defendant’s burden is to demonstrate that the act or acts of

which the plaintiff complains were taken “in furtherance of the [defendant]’s right to petition or free speech under the United States or California Constitution in connection with a public issue,” as defined in the statute. [Citation.] If the court finds such a showing has been made, it then determines whether the plaintiff has demonstrated a probability of prevailing on the claim.’ [Citation.] In the second step, the plaintiff may only bring forward sufficient evidence to make out a viable prima facie case at trial, a burden that ‘is not particularly high.’ [Citation.]”. (O&C Creditors Group, LLC v. Stephens & Stephens XII, LLC (2019) 42 Cal.App.5th 546, 565-566.)

III. DISCUSSION

The motion was originally scheduled for July 28, 2026. On July 22, 2026, the court entered the parties’ stipulation to continue the hearing to July 30, 2026.

The motion only addresses the Breach of Oral Contract, Negligent Misrepresentation, and Declaratory Relief. Mouchmouchian presents no challenge to the scope of the motion. The pleading entitled “answer and counterclaims,” therefore remains the operative answer to the complaint, with the cross-complaint considered in the separately filed pleading.

Protected
Conduct

An act in furtherance of a person's right to petition or free speech under the United States Constitution or California Constitution includes “(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Code Civ. Proc., § 425.16, subd. (e).)

Plaintiffs/Cross-Defendants

assert the subject cross-complaint arises from protected activity in that the cross-complaint was filed “for suing” Defendant/Cross-Complainant. The position relies on citation to three paragraphs from the cross-complaint, whereby the cross-complaint alleges in part that “Mouchmouchian has been damaged by having to defend against CounterDefendants’ (sic) claims in this action [Cross-Comp., ¶ 28]; “Mouchmouchian is now forced to defend himself against this action filed by CounterDefendants (sic)” [Id., ¶ 40]; and, “an actual controversy has arisen and now exists between the Parties concerning the location of the wall at issue” [Id., ¶ 42].

Mouchmouchian in

opposition denies any direct association with a protected activity. The causes of action seek direct and independent relief arising from the wall construction project.

Plaintiffs/Cross-Defendants in reply

reiterate the protected activity basis and asserts that the alleged communications regarding the agreement for wall construction directly constitutes an expression of free speech. The reply also again cites to certain paragraphs in the cross-complaint.

The motion itself lacks any

identified, relied upon standard until the reply. To the extent the motion cites to the phrases regarding damages suffered and/or the necessity of bringing the declaratory relief action as a result of the complaint, the court considers a litigation privilege position.

The Court may look to the litigation privilege as an

aid in determining the first step of the anti-SLAPP inquiry. (Flatley v. Mauro (2006) 39 Cal.4th 299, 322-323.) “The litigation privilege in section 47 applies to ‘any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action. [Citations.]’ [Citation.]” (n (2007) 154 Cal.App.4th 28, 37.) The litigation privilege applies to any and all causes of action except malicious prosecution. (Hagberg v. California Federal Bank FSB (2004) 32 Cal.4th 350, 375.) “A plaintiff cannot establish a probability of prevailing if the litigation privilege precludes the defendant’s liability on

the claim.” (Digerati Holdings, LLC v. Young Money Entertainment, LLC (2011) 194 Cal.App.4th 873, 888.) Whether the privilege applies is “a factual question that will require evaluation of plaintiffs’ proffered evidence to determine whether they have made a prima facie showing of their ability to negate these factors.” (Birkner v. Lam (2007) 156 Cal.App.4th 275, 286.)

The substantive context of the cross-complaint in fact arises from the allegations raised in the complaint over the wall construction, thereby interfering with Plaintiffs’ intended home improvement project. The concluding phrases in the first and second causes of action when read in isolation clearly reference the underlying complaint. The standard however requires consideration of the entire pleading.

The anti-SLAPP provisions apply where the allegations of the defendant’s protected activity are the gravamen or principal thrust of the cause of action. (Peregrine Funding, Inc. v. Sheppard Mulin Richter & Hampton LLP (2005) 133 Cal.App.4th 658, 672 [“where a cause of action alleges both protected and unprotected activity, the cause of action will be subject to section 425.16 unless the protected conduct is “merely incidental” to the unprotected conduct”]; California Back Specialists Medical Group v. Rand (2008) 160 Cal.App.4th 1032, 1037 [“The anti-SLAPP statute does not apply where protected activity is only collateral or incidental to the purpose of the transaction or occurrence underlying the complaint”].) If the allegations of protected activity are only incidental to a claim based essentially on non-protected activity, the mere mention of the protected activity does not subject the claim to an anti-SLAPP motion. (Martinez v. Metabolife International, Inc. (2003) 113 Cal.App.4th 181, 188 [“We conclude it is the principal thrust or gravamen of the plaintiff’s cause of action that determines whether the anti-SLAPP statute applies (Citation), and when the allegations referring to arguably protected activity are only incidental to a cause of action based essentially on nonprotected activity, collateral allusions to protected activity should not subject the cause of action to the anti-SLAPP statute”].) “[T]he mere fact that an action was filed after protected activity took place does not mean the action arose from that activity for the purposes of the anti-SLAPP statute. (Citation.) Moreover, that a cause of action arguably may have been ‘triggered by protected activity does not entail it is one arising from such. (Citation.) In the anti-SLAPP context, the critical consideration is whether the cause of action is based on the defendant’s protected free speech or petitioning activity.” (Navellier v. Sletten (2002) 29 Cal.4th 82, 89.) Courts must “draw a careful distinction

between a cause of action based squarely on a privileged communication ... and one based upon an underlying course of conduct evidenced by the communication.” (White v. Western Title Ins. Co. (1985) 40 Cal.3d 870, 888.)

The cross-complaint when read in context of the overall action in no way meets the threshold of a retaliatory action to a litigation privileged activity (e.g. the filing of the complaint). Mouchmouchian establishes a separate and independent right to seek relief based on claims arising from the parties' prior communications and the sought after necessity for a determination of rights among the parties. Mouchmouchian is in no way limited or precluded from seeking relief on the dispute, and otherwise forced to depend on the complaint to hopefully identify all sought after relief by Mouchmouchian. Thus, the filing of the cross-complaint can occur without constituting a retaliatory act in violation of a protected activity.

Plaintiffs/Cross-Defendants therefore fail to establish an underlying protected activity and shift the burden. The motion is denied on this basis.

Probability of Prevailing on the Merits

Even if Plaintiffs/Cross-Defendants shifted the burden, the motion again only relies on the assumption of retaliatory activity as a result of the underlying complaint. Mouchmouchian denies such assumptions. Neither party submits any declarations in support or against the motion. The identification of the “litigation privilege” in the reply lacks support. The dispute over the quality of the allegations otherwise belongs in a demurrer or motion for judgment on the pleadings, rather than a special motion to strike.

The motion is denied in its entirety.

IV. CONCLUSION

The special motion to strike the cross-complaint is denied. Plaintiffs/Cross-Complainants to file a responsive pleading within 10 days of this order.

Dated: July 30, 2026

Brock T.
Hammond

Judge of
the Superior Court